Before the Board of Supervisors

of the County of Fresno

State of California

FILED

JUL 07 2026

FRESNO COUNTY CLERK

DEPUTY

In the Matter of Calling a Countywide Special Election to be Consolidated with the Statewide General Election to be Held on November 3, 2026, for the Purpose of Submitting to the Electors of Fresno County a Ballot Measure Relating to Ordinance No. 26-004 Regarding the Establishment of the Fresno County Transient Occupancy Tax in the Unincorporated Areas of Fresno County

Resolution

Whereas, Revenue and Taxation Code section 7280 authorizes the Board of Supervisors of the County of Fresno (Board) to levy a transient occupancy tax and Elections Code section 9140 authorizes the Board of Supervisors to submit an ordinance levying such a tax to the voters, without a petition, to be voted upon at any succeeding regular or special election and, if it receives a majority of the votes cast, the ordinance shall be enacted; and

Whereas, on April 21, 2026, the Board adopted Ordinance No. 26-004 to amend the Ordinance Code of Fresno County to add Chapter 4.14 to establish the Fresno County Transient Occupancy Tax in the unincorporated areas of Fresno County, by its terms to be operative as of the first day of the first calendar quarter beginning after the date of the election at which it is approved by the voters of Fresno County; and

Whereas, the transient occupancy tax to be established by Ordinance No. 26-004 would be a general tax and therefore, under California Constitution, article XIII C, section 2, subdivision (b), may not be imposed until it is submitted to the electorate and approved by a majority vote;

Whereas, the Board has determined to submit Ordinance No. 26-004 to the voters of Fresno County, including the voters of both the incorporated and the unincorporated areas, by calling a countywide special election, to be consolidated with the November 3, 2026 Statewide General Election;

Whereas, County staff conducted virtual and in-person community meetings to provide information to the community regarding revenue that funds County services including, without

limitation, public safety, wildfire/disaster response, 911, road maintenance, behavioral and public health, water infrastructure, parks, and other public services; and

Whereas, these community meetings provided an overview of the County's budget process and described how funding is allocated or appropriated to various public services provided by the County; and

Whereas, the tax that would be imposed under this measure would be paid only by people who stay at a hotel, motel, or short-term rental in unincorporated areas of Fresno County, to ensure that visitors pay their fair share for the public services they benefit from while visiting and contribute to maintaining quality of life for Fresno County residents; and

Whereas, funding from this measure would be subject to the same standards of public disclosure for all County spending, which includes annual audits by an external auditor, that allow voters to follow how County funds are used; and

Whereas, all funds from this measure would remain local;

Now, **therefore**, the Board resolves as follows:

1. The Board hereby calls, orders, and proclaims a countywide special election to be held in the County of Fresno on November 3, 2026, for the purpose of submitting to the voters of Fresno County Ordinance No. 26-004 to amend the Ordinance Code of Fresno County to add Chapter 4.14 to establish the Fresno County Transient Occupancy Tax in the unincorporated areas of Fresno County, pursuant to Revenue and Taxation Code section 7280 and Elections Code section 9140.

2. Under Elections Code sections 10400 et seq., the Board hereby orders the countywide special election on Fresno County Ordinance No. 26-004 to be consolidated with the November 3, 2026 Statewide General Election and placed on the ballot at that election.

3. The Board acknowledges that the consolidated election will be held and conducted in the manner prescribed in Elections Code section 10418.

4. The Fresno County Clerk/Registrar of Voters is designated as the elections official for the election, and the Fresno County Clerk/Registrar of Voters is hereby authorized and directed to provide all notices and take all other actions necessary to holding the election,

including but not limited to providing notices of times within which arguments for and against are submitted.

5. The ballot question hereby approved for the election is as follows:

> **Fresno County Hotel Tax**. Shall the measure to establish a tax paid only by guests staying in overnight short-term lodging in the unincorporated area of Fresno County at the rate of 12% of the rent for the stay, estimated to raise $4,500,000 annually, until changed or repealed, in general revenue for the County of Fresno, which provides public safety, wildfire/disaster response, 911, road maintenance, behavioral and public health, water infrastructure, parks, and other public services, be adopted?
>
> Yes ____ No ____

6. The Fresno County Clerk/Registrar of Voters is hereby authorized and directed to cause the complete text of Ordinance No. 26-004 to be printed as indicated in the attached Exhibit A in the County of Fresno Voter Information Guide, and a copy of Ordinance No. 26-004 shall be made available to a voter upon request.

7. The measure shall be designated on the ballot by a letter, as provided in Elections Code section 13116. The Board requests that the Fresno County Clerk/Registrar of Voters designate the ballot measure as Measure "A."

8. Arguments in favor of and in opposition to the measure and rebuttal arguments shall be permitted and shall be filed with the Fresno County Clerk/Registrar of Voters in accordance with applicable provisions of the Elections Code, including sections 9161 through 9167. As provided in Elections Code section 9162, the Board or any member of the Board is hereby authorized to act as an author of any ballot argument prepared in connection with the election on the measure.

9. The Fresno County Clerk/Registrar of Voters shall fix the dates for submission of arguments and rebuttals as provided for in the Elections Code.

10. Pursuant to Elections Code section 9160, subdivision (b), the County Counsel is directed to prepare an impartial analysis of the measure.

11. Pursuant to Elections Code section 9160, subdivision (c), the Auditor-Controller/ Treasurer-Tax Collector is directed to prepare a fiscal impact statement which estimates the amount of any increase or decrease in revenues or costs to the County if the measure is adopted.

12. The County Administrative Officer is authorized and directed to work with the Fresno County Clerk/Registrar of Voters and take all steps necessary to place the measure and any associated materials on the ballot.

THE FOREGOING, was passed and adopted by the following vote of the Board of Supervisors of the County of Fresno this 30th day of June, 2026, to wit:

AYES: Supervisors Bredefeld, Chavez, Magsig, Mendes, Pacheco

NOES: None

ABSENT: None

ABSTAINED: None

COUNTY OF FRESNO

Garry Bredefeld, Chairman of the Board of Supervisors of the County of Fresno

ATTEST:
Bernice E. Seidel
Clerk of the Board of Supervisors
County of Fresno, State of California

By _____
Deputy

FILE # 26-0496

AGENDA # 7

RESOLUTION # 26-257

Exhibit A to Resolution Calling Election

FILED
JUL 07 2026
FRESNO COUNTY CLERK
BY _____ DEPUTY

Before the Board of Supervisors
of the County of Fresno
State of California
Ordinance Number 26-004

An Ordinance Establishing the Fresno County Transient Occupancy Tax

Section 1. Findings. The Board of Supervisors of the County of Fresno hereby finds and declares as follows:

A. The Legislature has authorized counties to levy a transient occupancy tax in unincorporated areas.

B. The County is one of only three counties in California that has not yet levied a transient occupancy tax in its unincorporated area.

C. There is significant business of renting lodgings, such as hotels and short-term rentals, to tourists, transients, and other guests in the unincorporated area of the County.

D. The Board finds it necessary and appropriate to levy a transient occupancy tax.

Now, therefore, the Board of Supervisors of the County of Fresno ordains as follows:

Section 2. The Ordinance Code of the County of Fresno is hereby amended by adding a new Chapter 4.14 to read as follows:

Chapter 4.14 – Transient Occupancy Tax

4.14.010 – Title.

This chapter shall be known and may be cited as the Fresno County Transient Occupancy Tax.

4.14.020 – Authority.

This chapter is adopted under Part 1.7 (beginning with section 7280) of Division 2 of the Revenue and Taxation Code. If there is any conflict between this chapter and state law, state law prevails.

4.14.030 – Operative Date.

This chapter is operative as of the first day of the first calendar quarter beginning after the date of the election at which this chapter is approved by the voters of the County.

4.14.040 – Definitions.

For purposes of this chapter:

A. "Day" means a calendar day unless otherwise specified.

B. "Individual" means a natural person.

C. "Lodging" means any space or structure or any portion of any structure that is occupied or intended or designed for occupancy by transients for lodging or sleeping purposes and includes any hotel, inn, tourist home or house, short-term rental, motel, studio hotel, bachelor hotel, lodging house, rooming house, apartment house, dormitory, public or private club, camping site or space at a campground or recreational vehicle park, mobilehome as provided in Revenue and Taxation Code section 7281, or other similar space or structure or portion of such structure.

1. "Lodging" does not include any hospital, sanitarium, medical clinic, convalescent home, rest home, home for aged people, foster home, or other similar facility operated for the care or treatment of human beings; any asylum, jail, prison, orphanage, or other facility in which human beings are detained and housed under legal restraint; any housing owned or controlled by any educational institution and used exclusively to house students, faculty, or other employees, and any fraternity or sorority house or similar facility occupied exclusively by students and employees of that educational institution, and officially recognized or approved by it; any housing operated or used exclusively for religious, charitable, or educational purposes by any organization having qualifications for exemption from property tax laws under the laws of this state; any housing owned by a governmental agency and used to house its employees or for governmental purposes; any camp defined in the Labor Code or other housing furnished by an employer exclusively for employees; any camp defined in the Insurance Code,

whether for profit or not, offering recreation activities and operated exclusively for minors; or any housing furnished by an employer exclusively for employees.

2. "Lodging" does not include a right of an owner of a timeshare estate or a membership camping contract excluded from taxation under Revenue and Taxation Code section 7280 or a campsite excluded from taxation under Revenue and Taxation Code section 7282.

3. "Lodging" does not include a private home, family vacation cabin, or like structure whose owner is not engaged in the business of renting such facilities, either directly or through a short-term rental facilitator, but does so only occasionally, incidentally to their own use, and not for profit.

D. "Occupancy" means the use of, or the right to use, any lodging for lodging or sleeping purposes.

E. "Operative date" means the date referenced in section 4.14.030.

F. "Operator" means the person who is the proprietor of the lodging, whether in the capacity of owner, lessee, sublessee, mortgagee in possession, licensee, or any other capacity. Where the operator performs their functions through a managing agent other than an employee, including through a short-term rental facilitator, the managing agent is also deemed an operator for purposes of this chapter and has the same duties and liabilities as the principal, but compliance with a provision of this chapter by either the principal or the managing agent is deemed compliance by both.

G. "Rent" means the consideration charged, whether or not received, for occupancy of a lodging, valued in money, whether to be received in money, goods, labor, or otherwise, including all receipts, cash, credits, property, and services of any kind or nature, without any deduction.

H. "Short-term rental" has the meaning given in Government Code section 50991, subdivision (f).

I. "Short-term rental facilitator" has the meaning given in Government Code section 50991, subdivision (g).

J. "Tax" means the tax imposed by section 4.14.050 and includes all penalties and interest imposed under this chapter.

K. "Tax collector" means the tax collector of the County.

L. "Transient" means any individual having occupancy of a lodging, regardless of the form of agreement, license, permit, or entitlement providing for occupancy, for a period of 30 or fewer consecutive days, counting portions of days as full days. Any individual having occupancy in a lodging is deemed a transient until that period has expired unless there is a written agreement between the operator and the individual providing for a longer period of occupancy by that individual. In determining whether an individual is a transient, uninterrupted periods of time extending both before and after the operative date may be considered.

4.14.050 – Tax.

For the privilege of occupancy in any lodging, each transient is subject to and shall pay a tax in the amount of 12 percent of the rent charged by the operator. That tax is a debt owed by the transient to the County, which is satisfied only by payment in full to the operator or to the County. The transient shall pay the tax to the operator at the time the rent is paid. If the rent is paid in installments, a proportionate share of the tax shall be paid with each installment. The unpaid tax is due upon the termination of the occupancy. If the tax due is not paid to the operator, the tax collector may require that the tax be paid directly to the tax collector.

4.14.060 – Exemptions.

A. Subject to paragraph B, the following individuals are exempt from the tax:

1. An employee or officer of a government outside the United States.

2. An employee or officer of the United States government.

3. An employee or officer of the State of California or of the government of a political subdivision of the State of California.

B. No exemption shall be granted under this section unless a claim of exemption in the form prescribed by the tax collector is executed by the transient under penalty of perjury and filed with the operator at the time rent is collected.

4.14.070 – Operator Collection Duties.

Each operator shall collect the tax to the same extent and at the same time the rent for occupancy is collected from each transient. The amount of tax shall be separately stated from the amount of rent charged and each transient shall receive a receipt from the operator for payment of the tax. No operator shall advertise or state in any matter, whether directly or indirectly, that the tax or any portion of the tax will be borne by the operator, or that it will not be charged to the transient, or that any amount will be refunded, except as provided in this chapter. All tax collected by an operator pursuant to this chapter is deemed County funds held in trust by the operator to the account of the County until paid to the tax collector.

4.14.080 – Registration.

A. Within 30 days after the operative date, or before establishing a transient occupancy business, whichever is later, each operator shall register with the tax collector, on a form prescribed by the tax collector, each premises by street address where the operator has any lodging.

B. After receiving a properly completed registration form, the tax collector shall issue, without charge, a certificate of authority for the operator to collect the tax from transients at each premises where the operator has any lodging. The certificate shall contain the following information:

1. The name of the operator;
2. The address of the lodging;
3. The date the certificate was issued;
4. Any other relevant information required by the tax collector to assist in correct reporting and collection of the tax; and
5. The following statement: "This Transient Occupancy Registration Certificate signifies that the person named has satisfied the requirements for registration with the County of Fresno for the purpose of collecting from transients the Fresno County Transient Occupancy Tax (Fresno County Ordinance Code, Chapter 4.14) and remitting the tax to the County of Fresno's tax collector. This certificate does not authorize any

person to conduct any unlawful business or to conduct any lawful business in any unlawful manner. This certificate is not a business permit, a land use permit, a license to operate a transient occupancy business on this premises, or authorization to operate a transient occupancy business without full compliance with all applicable laws, statutes, ordinances, and regulations."

C. The operator shall post the certificate conspicuously and continuously at each premises where the operator has any lodging.

D. Failure to comply with this section does not relieve any person from the obligation to collect or pay the tax.

4.14.090 – Return and Remittance.

Each operator shall, on or before the close of business on the last County business day of the month following the close of each calendar quarter, or at the close of any shorter reporting period that may be established by the tax collector, or immediately upon cessation of transient occupancy business, make a return to the tax collector, on the form prescribed by the tax collector, of the total rents charged and received, the amount of tax collected, and any other information required by the tax collector, for the calendar quarter or shorter reporting period if established by the tax collector. At the time of filing that return, the operator shall remit to the tax collector the full amount of tax collected during the reporting period.

4.14.100 – Operator Records.

Each operator liable for collection and payment of tax to the County shall keep and preserve, for a period of three years, all records necessary to determine the amount of the tax that the operator may have been liable to collect and pay to the County. The tax collector has the right to inspect those records at all reasonable times.

4.14.110 – Penalties and Interest.

A. Any tax that is unpaid within the time required by section 4.18.090 is delinquent and a delinquent penalty in the amount of 10 percent of the tax attaches.

B. If any tax remains delinquent for 30 days, a second delinquent penalty, in the amount of 10 percent of the tax and the first delinquent penalty, attaches.

C. If the tax collector determines that the nonpayment of any tax under this chapter is due to fraud, a penalty of 25 percent of the tax attaches, in addition to any other penalties under this section.

D. In addition to the penalties imposed, interest at the rate of one and one-half percent per month, on the amount of tax, exclusive of penalties, accrues at the close of business on the last County business day of each month beginning one month after the tax becomes delinquent.

E. Every penalty and all interest imposed under this chapter is deemed part of the tax due.

4.14.120 – Medium of Payment.

All payments under this chapter shall be in a medium permitted for payment of property taxes to the County pursuant to Chapter 1 (beginning with section 2501) of Part 5 of Division 1 of the Revenue and Taxation Code.

4.14.130 – Failure of Operator to Collect, Report, or Remit.

A. If an operator fails to collect the tax, or fails to make, within the time provided in this chapter, any report or return or any remittance of tax or any portion of tax, the tax collector shall proceed in the manner the tax collector deems appropriate to obtain facts and information upon which to base an estimate of the tax due. Upon procuring such facts and information, the tax collector shall determine and assess the tax upon the operator with penalties and interest as provided by this chapter.

B. In the absence of facts or information the tax collector deems most appropriate, the tax collector shall estimate the tax by multiplying the number of days in each reporting period for which the operator has failed to collect, report, or remit the tax, by the estimated number of lodging units customarily available for rent by the operator and multiplying that number by the estimated average rent for the subject lodging units or similar lodging units and multiplying that amount by the tax rate. The tax collector shall then determine and assess the tax upon the operator with penalties and interest as provided by this chapter.

C. The tax collector shall give written notice of any tax assessed under this section. The notice shall be given by mail or by personal service to the operator at their last known address.

D. Within 10 days after the date of personal service or within 15 days after the date of mailing of a notice under this section, the operator may apply in writing to the tax collector for an initial hearing on the amount assessed. If the operator does not apply for an initial hearing within the time prescribed, the tax assessed by the tax collector, including all penalties and interest, if any, becomes final and conclusive and is immediately due and payable.

4.14.140 – Deficiency Assessment.

A. If the tax collector is not satisfied with a return filed by an operator or the amount of the tax required to be paid pursuant to a return, the tax collector may assess a tax deficiency by computing and determining the amount required to be paid based on facts contained in the return or based on any information within the tax collector's possession or that may come into the tax collector's possession. The tax collector may assess one or more tax deficiency for each reporting period.

B. The tax collector shall give written notice of any tax deficiency assessed under this section. The notice shall be given by mail or by personal service to the operator at their last known address.

C. Within 10 days after the date of personal service or within 15 days after the date of mailing of a notice under this section, the operator may apply to the tax collector, in the form prescribed by the tax collector, for an initial hearing on the tax deficiency. If the operator does not apply for an initial hearing within the time prescribed, the tax deficiency assessed by the tax collector, including all penalties and interest, if any, becomes final and conclusive and is immediately due and payable.

4.14.150 – Initial Hearings and Appeals.

A. If an operator timely applies for an initial hearing as provided in this chapter, the tax collector shall give written notice to the operator of the date, time, and place of an initial hearing no more than 60 days after the date the application is received by the tax collector. The date of the initial hearing shall be at least 10 days after the date of personal service or at least 15 days after the date of mailing of written notice under this section. At the initial hearing, the operator may appear and offer evidence why the tax, or any portion of the tax, should not be assessed.

B. Within 30 days after the initial hearing, the tax collector shall give written notice by certified mail or personal service of the determination and amount of tax. The tax as determined is payable immediately and delinquent and subject to penalties and interest under section 4.14.110 if not paid within 10 days after the date of personal service or within 15 days after the date of certified mailing of a notice under this paragraph, unless the operator files a notice of appeal with the county administrative officer.

C. The appeal shall be heard by a hearing officer pursuant to Chapter 2.81.

D. Within 30 days after the appeal hearing, the hearing officer shall give written notice to both the appellant operator and the tax collector by certified mail or personal service of the decision and amount of tax. The findings of the hearing officer shall be final and conclusive. If any amount of tax is due to be paid by the operator because of the decision, it is payable immediately and delinquent and subject to penalties and interest under section 4.14.110 if not paid within 10 days after the date of personal service or within 15 days after the date of certified mailing of a notice of decision under this paragraph. If the operator has paid and is entitled to any refund of tax because of the decision, the refund shall be paid with the written notice of the decision without a claim under section 4.14.160.

E. Notwithstanding paragraph C of this section, if staff to the Office of the County Hearing Officer are unable to assign a hearing officer, then the appeal shall be heard by the Board at a regular meeting. The county administrative officer shall provide at least 20 days' advance written notice to the appellant operator of the date, time, and place of the meeting where the appeal will be heard. If the Board hears the appeal, references to the hearing officer in paragraph D of this section include the Board.

F. The County may challenge the decision of a hearing officer by petition for writ of mandate filed in the Superior Court within 60 days after the tax collector has received written notice of the decision.

4.14.160 – Refund Claims.

A. Any tax paid before or after delinquency shall be refunded if it was paid more than once or if it was erroneously or illegally collected or received by the County and if the amount to be refunded exceeds ten dollars.

B. Except as provided in section 4.14.150, no tax shall be refunded except on a claim that:

1. Is in writing, in the form prescribed by the tax collector;
2. Specifies the grounds on which the claim is founded;
3. Includes written records establishing the validity of the claim;
4. Is verified under penalty of perjury by the person who paid the tax, their guardian or conservator, the executor of their will, or the administrator of their estate; and
5. Is filed with the tax collector within six months after payment of the tax.

C. An operator may claim a refund or take as credit against taxes to be collected and remitted the amount paid more than once or erroneously or illegally collected or received, except that neither a refund nor a credit shall be allowed unless the amount of the tax so collected has either been refunded by the operator to the person from which it was collected or credited by the operator to rent subsequently payable by that person to the operator.

D. A transient may claim a refund only when they paid the tax directly to the tax collector, or when the transient, having paid the tax to the operator, establishes to the satisfaction of the tax collector that the transient has been unable to obtain a refund from the operator that collected the tax.

4.14.170 – Exhaustion.

A. Any person wishing to challenge the legality of all or any part of a tax imposed under this chapter must, before seeking judicial relief:

1. Pay the amount of the disputed tax;
2. Present a claim for refund under section 4.14.160; and
3. Allow action to be taken on that claim under section 4.14.160.

B. The person who paid the tax, their guardian or conservator, the executor of their will, or the administrator of their estate may bring an action in Superior Court, but not in the small claims division, against the County of Fresno to recover any tax that the County has refused to refund on a claim for refund pursuant to section 4.14.160. No other person may bring such an action; but if another person should do so, judgment shall not be rendered for the plaintiff.

C. Any suit for tax refund shall be commenced within six months after the date of action on the refund claim under section 4.14.160.

D. Any person claiming to be aggrieved under this chapter and seeking judicial relief may not file any type of judicial action other than a refund action. No recovery shall be allowed in any refund action upon any ground not specified in the refund claim.

E. Notwithstanding any other provision of this chapter, no claim or defense that, for any reason, a tax is not due or cannot be applied under this chapter may be raised in any judicial proceeding except in an action for refund of the disputed tax.

4.14.180 – Actions to Collect.

Any person owing money to the County under this chapter is liable to an action brought in the name of the County, in any court of competent jurisdiction within the County, or within the county of residence of such person, at the option of the tax collector, for the recovery of that amount.

4.14.190 – Recording Certificate of Lien.

A. The tax collector may record a certificate of lien in the office of the Fresno County Recorder within three years after the amount required to be paid to the County under this chapter is delinquent. The certificate shall specify:

1. The amount of tax, penalties, and interest due;

2. The name and address, as it appears on the records of the tax collector, of the operator or operators liable for the tax;

3. The fact that the tax collector has complied with all provisions of this chapter; and

4. The determination of the amount required to be paid.

B. From the time of recording a certificate of lien under this section, the amount required to be paid constitutes a lien upon all real and personal property in the County owned by the operator or afterwards acquired by the operator before the expiration of the lien. The lien has the force, effect, and priority of a judgment lien and shall continue for 10 years from the time of recording unless sooner released or otherwise discharged. The lien may be extended for two additional 10-year periods by re-recording the original certificate of lien. The certificate of lien may be recorded in any other county in which the operator may have property.

4.14.200 – Change in Ownership.

A. Before a change of ownership in a lodging, the transferor or operator of the lodging shall give written notice to the tax collector of the sale no later than 15 days before the close of escrow or the transfer of title. The transferor shall request and complete a final transient occupancy report form and pay upon close of escrow or upon delivery of title or transfer, whichever occurs first, all tax due under this chapter.

B. Before the change of ownership of a lodging, the transferee or prospective operator of the lodging shall give written notice to the tax collector of the sale no later than 15 days before the close of escrow or the transfer of title. The transferee shall retain from the purchase price the amount for which the transferor is liable until the transferor produces a certificate from the tax collector stating that the taxes have been paid. If the tax is not paid as provided in this chapter, the tax collector shall request the retained amount from the transferee and the transferee shall pay the request within 10 days.

C. If proper notice is given by the parties to the transfer of ownership of a lodging:

1. The tax collector may perform an audit to determine any tax liability of the transferor before the change in ownership.

2. The county will release the transferee from any tax liability of the transferor before the change of ownership.

3. The County will release the transferee from any tax liability arising before the change of ownership, even if no audit was conducted.

D. This section is deemed constructive notice to all new owners of lodgings that they shall assume liability for all unpaid tax when the tax collector is not properly notified as required by this section.

4.14.210 – Optional Electronic Communications.

County officials may use electronic means to communicate with any person regarding their obligations under this chapter. Such communications are not a substitute for notices permitted or required by this chapter, are deemed to be a courtesy only, and have no effect on the time in which any act under this chapter may or must be done.

4.14.220 – Civil Remedies.

In addition to any and all other remedies provided in this chapter, the tax collector may use any and all civil remedies available to the tax collector at law or in equity not otherwise prohibited by law or inconsistent with provisions of this chapter.

4.14.230 – Violations.

In addition to any civil remedy for the collection of taxes, any person violating any of the provisions of this chapter is guilty of a misdemeanor and is punishable as otherwise provided in this code.

4.14.240 – Enjoining Collection Forbidden.

No injunction or writ of mandate or other legal or equitable process shall issue in any suit, action or proceeding in any court against the County, or against any officer of the County, to prevent or enjoin the collection of any tax under this chapter.

4.14.250 – Amendment of Ordinance.

Except for amendments that would increase the tax rate, impose the tax on occupancy not previously subject to the tax, or be inconsistent with the purposes of this ordinance, the Board may amend this chapter without submitting the amendment to the voters for approval.

4.14.260 – Severability.

If any portion of this chapter is held to be invalid by any court of competent jurisdiction, such decision shall not affect the validity or effectiveness of the remaining portions of this chapter.

The Board hereby declares it would have passed each remaining portion irrespective of the fact that any one or more portions are declared invalid.

Section 3. Under Government Code section 25123, subdivision (c), as an ordinance fixing the rate of a tax to be levied, this ordinance is effective immediately upon its final passage.

THE FOREGOING, was passed and adopted by the following vote of the Board of Supervisors of the County of Fresno this 21st day of April, 2026, to wit:

AYES: Supervisors Bredefeld, Chavez, Magsig, Mendes, Pacheco

NOES: None

ABSENT: None

ABSTAINED: None

COUNTY OF FRESNO

Garry Bredefeld, Chairman of the Board of Supervisors of the County of Fresno

ATTEST:
Bernice E. Seidel
Clerk of the Board of Supervisors
County of Fresno, State of California

By _____ Deputy

FILE # 26-0259

AGENDA # 36

ORDINANCE # 26-004